

Tentative Rulings for July 9, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302429	PETERSEN VS FELDMAN	HEARING ON MOTION TO TAX COSTS BY MICHAEL PETERSEN

Tentative Ruling: Granted.

No opposition filed to Motion to Tax Costs on Memorandum of Costs filed March 24, 2025.

Costs reduced by \$1,641.00 to total amount of \$662.37.

Moving party to provide notice pursuant to CCP 1019.5.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2405406	ROBINSON VS IRWIN	MOTION TO BE RELIEVED AS COUNSEL FOR KENNETH ROBINSON

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday July 9, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500121	ORNELAS VS LE PAON RESTAURANT LLC	MOTION TO COMPEL LE PAON RESTAURANT TO PROVIDE RESPONSES TO SPECIAL INTERROGATORIES, SET TWO WITHOUT OBJECTIONS, AND FOR SANCTIONS IN THE AMOUNT OF \$600 BY ROSA ORNELAS

Tentative Ruling: Hearing taken off calendar by moving party on July 6, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509093	LIBERTAD VS COUNTY OF RIVERSIDE-TRANSPORTATION & LAND MANAGEMENT AGENCY (TLMA)	DEMURRER ON 1ST AMENDED PETITION FOR WRIT OF MANDATE OF URIMARE J LIBERTAD BY COUNTY OF RIVERSIDE

Tentative Ruling: Sustained.

Sustained without leave to amend per prior ruling on April 1, 2026.

Moving party to submit proposed judgment within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Petitioner Urimare J. Libertad (“Petitioner”) is the owner of real property located on Mt. Edna Road (“Subject Property”) in an unincorporated area of Respondent County of Riverside (“County”). On November 17, 2025, a lithium battery fire destroyed structures on the Subject Property. Petitioner alleges that emergency response was delayed due to the County’s inaccurate GIS mapping, unmaintained access routes and the fact that privately owned gates on Mt. Edna Road were controlled by Respondent High Valleys Water District without legal authority. Petitioner asserts that the County and other Respondents breached mandatory duties to ensure accurate public safety records and GIS mapping, and the failure to perform these duties constitutes an abuse of discretion.

Petitioner, in pro per, filed a Petition for Writ of Mandate (“Petition”) against the County—Transportation & Land Management Agency (TLMA), Riverside County Code Enforcement, Riverside County Fire Department, Engineering & Special District, High Valley Water District (collectively “Respondents”) on December 15, 2025, and the operative First Amended Petition for Writ of Mandate (“FAP”) on April 6, 2026. The petition seeks a writ of mandate compelling Respondents to (1) Correct government records relating to APN 544- 220- 002; (2) Maintain accurate GIS mapping and location data; (3) Ensure that the property can be reliably identified by emergency responders; (4) Ensure safe and adequate emergency access routes; and (5) Perform all mandatory duties required by law.

The County now demurs to the FAP. The County argues that Petitioner does not assert a ministerial duty based on a specific constitutional provision or statute. The County argues that it has no duty to provide a situs address for the Subject Property. The County argues that it has no duty to maintain Mt. Edna Road because it is not part of the designated County Road System. The County argues that the FAC is uncertain and ambiguous.

Petitioner argues that the Petition is based on more than the failure to assign a situs address, and includes mandatory obligations involving emergency response coordination, identification systems and dangerous condition prevention. Petitioner argues that the County is responsible for maintaining Mt. Edna Road based on its use of the road. Petitioner argues that the County is obligated to maintain emergency service location information regardless of whether the structures on the Subject Property are properly permitted. Petitioner argues that the FAP is sufficiently certain to allow the County to understand the claims.

In its Reply, the County again argues that the FAP and Opposition cite no facts or law which demonstrate a ministerial duty.

Request for Judicial Notice (RJN)

The County requests judicial notice of the Geographic Information Systems (“GIS”) Property Report for the Subject Property and a printout of page 146 of the Riverside County Road Book.

The request is granted under Evid. Code § 452(c) because the documents are official acts. However, “although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not

subject to judicial notice if those matters are reasonably disputable.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.)

Demurrer

A party may object by demurrer to a complaint on grounds that the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) For the purposes of a demurrer, the allegations in the complaint must be accepted as true. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) “In short, the ruling on a demurrer determines a legal issue on the basis of assumed facts, i.e., all those material, issuable facts properly pleaded in the complaint, regardless of whether they ultimately prove to be true.” (*State of California ex rel. Bowen v. Bank of America Corp.* (2005) 126 Cal. App. 4th 225, 240.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged.” (*C.A. v. Williams S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861.)

Additionally, a party may object by demurrer to a complaint on grounds that the pleading is uncertain, which includes ambiguous and unintelligible. (CCP §430.10(f).) Generally, a demurrer for uncertainty is strictly construed because ambiguities can be clarified under modern discovery procedures. (*Khoury v. Maly's, of California* (1993) 14 Cal. App. 4th 612, 616.) “If the pleadings contain sufficient particularity and precision to acquaint the defendants with the nature, source and extent of the cause of action, the general demurrer should be overruled.” (*County of Santa Clara v. Superior Court* (2009) 171 Cal. App. 4th 119, 126.)

Writ of Mandate

A proceeding for the issuance of a writ of mandate is a special civil proceeding governed by the provisions of CCP § 1063 et. seq. Administrative actions and decisions may be reviewed in two types of mandate proceedings: ordinary (traditional) mandate (CCP§ 1085) and administrative mandate (CCP § 1094.5.) Ordinary or traditional mandate proceedings are used to review actions or decisions of an administrative body or officer acting in a legislative or executive capacity (CCP § 1085; *Michael Leslie Productions v. City of Los Angeles* (2012) 207 Cal.App.4th 1011, 1020-1021.) Under CCP §1089 a party on whom writ has been served may respond by demurrer.

To obtain an ordinary writ of mandate, the petitioner must show: “(1) A clear, present and usually ministerial duty on the part of the respondent; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.” (*Santa Clara County Counsel v. Woodside* (1994) 7 Cal.4th 525, 539-40 (citations omitted).) “A ‘ministerial duty’ is one generally imposed upon a person in public office who, by virtue of that position, is obligated ‘to perform in a prescribed manner required by law when a given state of facts exists.’” (*City of King City v. Community Bank of Central California* (2005) 131 Cal.App.4th 913, 926.) “The critical question in determining if an act required by law is ministerial in character is whether it involves the exercise of judgment and discretion.” (*Glendale City Employees' Ass'n v. Glendale* (1975) 15 Cal. 3d 328, 344.) While traditional mandamus is not available to control the discretion exercised by a public official or board, it is available to correct an abuse of discretion by such party. (*Barnes v. Wong* (1995) 33 Cal.App.4th 390, 395) Because a ministerial duty is one which is

required by statute, the court must examine the language, function and purpose of the statute to determine whether the duty created by the statute requires the exercise of discretion. (*Weinstein v. County of Los Angeles* (2015) 237 Cal. App. 4th 944, 965.)

Here, Petitioner alleges that on November 17, 2025, during a lithium battery fire on the Subject Property emergency response was delayed. (FAP, ¶ 24.) Petitioner contacted 911, but responders were unable to promptly locate the property using the information available in Respondents' systems. (Id at ¶ 25.) Petitioner alleges that Respondents have relied on improper and inconsistent location descriptions, including referencing a neighboring property address with directional qualifiers rather than a clear identifier. (Id at ¶ 11.)

Petitioner contends that the County has mandatory ministerial duties under California law, including Government Code 26 §§ 815.6 and 835 to: (a) maintain accurate property and location records; (b) maintain reliable GIS mapping systems used for emergency response; (c) ensure that properties can be identified and located by emergency responders; (d) maintain safe and adequate emergency access routes; and (e) correct known inaccuracies in government records upon notice. (FAP, ¶ 8.)

However, the statutes cited are liability statutes which provide for compensation for injuries in certain circumstances, but do not impose any duties on the County. Govt. Code § 815.6 generally provides, “where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Petitioner is not seeking to hold the County liable for injuries resulting from the failure to maintain accurate property location records or GIS mapping systems. As with the initial Petition, Petitioner has again failed to cite any statutory duty regarding property location records or GIS mapping requirements. A vague assertion that the County has a duty to ensure that properties can be located by emergency responders is insufficient since these duties involve the exercise of judgment and discretion.

Govt. Code §835 provides for public entity liability for dangerous conditions on public property. Although Petitioner alleges that on April 21, 2025, a fatal vehicular incident occurred on Mt. Edna Road due to the dangerous condition allegedly caused by the County’s use (FAP, ¶ 21), again, Petitioner is not seeking damages for any injuries related to this incident. Section 835 does not create a ministerial duty to maintain the road. The alleged duty to maintain safe and adequate emergency access routes also involves the exercise of judgment and discretion, and therefore is not a ministerial duty.

The County argues that Petitioner has not established a mandatory duty to assign a “situs address” to an undeveloped property. Petitioner asserts that a situs address identifies the physical location of a parcel for mapping and emergency response; while a permitted address relates to structures and development approvals. (FAP, ¶¶15, 16.) However, Petitioner again cites no statutory duty to provide a situs address. Nor does FAP expressly request a writ mandating a situs address be provided. Instead, Petitioner requests a writ compelling the County to correct government records relating to APN 544-220-002; and maintain accurate GIS mapping and location data. (FAP, ¶¶ 34, 35.) Thus, the FAP remains uncertain as to this issue.

Consequently, because the Petition is uncertain and fails to state a cause of action based on a ministerial duty, the Demurrer must be sustained. If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court previously granted leave one additional time to correct the instant pleadings.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602451	RAINES VS DHSE INC., DBA MIRACLE SPRINGS RESORT & SPA	DEMURRER ON COMPLAINT OF MIA NODAL RAINES BY DHSE INC., DBA MIRACLE SPRINGS RESORT & SPA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday July 9, 2026 at 8:30 a.m. in Department PS2.